# COMPLIANCE REFERENCE DOCUMENT

Service Sector — Education & EdTech

**Sector:** Service Sector

**Industry:** Education & EdTech

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## SECTION 1 — COMMON COMPLIANCE (ALL SECTORS & INDUSTRIES)

### 1. GST Registration

GST Act • Registration • One Time • CRITICAL

Register under GST if turnover exceeds threshold (₹40L goods / ₹20L services)

**PENALTIES:** Failure to register under GST | Fine: ₹10,000 or 10% of tax due, whichever is higher

### 2. GSTR-1 Filing (Outward Supplies)

GST Act • Filing • Monthly • HIGH

File monthly/quarterly return of outward supplies by 11th of next month

**PENALTIES:** Late filing of GSTR-1 | Fine: ₹50/day (₹25 for NIL return), max ₹10,000

### 3. GSTR-3B Summary Return

GST Act • Filing • Monthly • HIGH

File monthly summary return by 20th of next month

**PENALTIES:** Late filing of GSTR-3B | Fine: ₹50/day (₹25 for NIL return), max ₹10,000

### 4. GST Annual Return (GSTR-9)

GST Act • Filing • Yearly • MEDIUM

File annual return by 31st December of following FY

**PENALTIES:** Late filing of annual return | Fine: ₹100/day, max 0.25% of turnover

### 5. E-Way Bill Compliance

GST Act • Other • Event Based • MEDIUM

Generate E-Way bill for goods movement exceeding ₹50,000

**PENALTIES:** Movement of goods without E-Way bill | Fine: ₹10,000 or 200% of tax payable

### 6. Income Tax Return (ITR-6)

Income Tax Act • Filing • Yearly • HIGH

File corporate ITR by 31st October of AY

**PENALTIES:** Late filing of ITR | Fine: ₹5,000 (₹1,000 if income < ₹5L) | Jail: Prosecution for non-filing (Sec 276CC)

### 7. Advance Tax Payment

Income Tax Act • Payment • Quarterly • HIGH

Pay advance tax: 15% by Jun, 45% by Sep, 75% by Dec, 100% by Mar

**PENALTIES:** Non-payment or short payment of advance tax | Fine: 1% simple interest per month on unpaid amount

### 8. TDS on Salary (Sec 192)

Income Tax Act • Payment • Monthly • HIGH

Deduct TDS on salary and deposit by 7th of next month

**PENALTIES:** Late deposit of TDS | Fine: 1% interest per month on amount deducted | Jail: Prosecution possible (Sec 276B)

### 9. TDS on Contractor (Sec 194C)

Income Tax Act • Payment • Monthly • MEDIUM

Deduct TDS on contractor payments and deposit monthly

**PENALTIES:** Non-deduction or late deposit of TDS | Fine: 1% interest per month + penalty equal to TDS amount | Jail: Prosecution possible (Sec 276B)

### 10. TDS on Professional Fees (Sec 194J)

Income Tax Act • Payment • Monthly • MEDIUM

Deduct TDS on professional/technical fees

**PENALTIES:** Non-deduction or late deposit of TDS | Fine: 1% interest per month + penalty equal to TDS amount | Jail: Prosecution possible (Sec 276B)

### 11. TDS Quarterly Return (Form 24Q/26Q)

Income Tax Act • Filing • Quarterly • HIGH

File TDS returns quarterly by 31st of following month

**PENALTIES:** Late filing of TDS return | Fine: ¹200/day, max ¹30,000

### 12. EPF Registration

PF Act • Registration • One Time • HIGH

Register for EPF if 20+ employees

**PENALTIES:** Failure to register for EPF | Fine: Up to ¹5,000 | Jail: Imprisonment up to 3 years (Sec 14)

### 13. EPF Monthly Contribution

PF Act • Payment • Monthly • HIGH

Deposit 12% employer + employee contribution by 15th of next month

**PENALTIES:** Late deposit of EPF contribution | Fine: Up to ¹5,000 or imprisonment up to 3 years | Jail: Up to 3 years (Sec 14)

### 14. EPF Annual Return (Form 5A)

PF Act • Filing • Yearly • MEDIUM

File annual EPF return by 30th November

**PENALTIES:** Failure to file EPF annual return | Fine: Up to ¹5,000 | Jail: Imprisonment up to 1 year (Sec 14)

### 15. ESI Registration

ESI Act • Registration • One Time • HIGH

Register for ESI if 10+ employees with wages < ¹21,000/month

**PENALTIES:** Failure to register under ESI | Fine: Up to ¹5,000 | Jail: Imprisonment up to 2 years (Sec 85)

### 16. ESI Monthly Contribution

ESI Act • Payment • Monthly • HIGH

Deposit 3.25% employer + 0.75% employee contribution by 15th of next month

**PENALTIES:** Late deposit of ESI contribution | Fine: Simple interest at 12% per annum | Jail: Imprisonment up to 2 years (Sec 85)

### 17. Professional Tax

Professional Tax • Payment • Monthly • MEDIUM

Deduct and pay professional tax as per state slab

**PENALTIES:** Failure to deduct/pay professional tax | Fine: ¹1,000 to ¹5,000 + interest 1.25% per month

### 18. Shop & Establishment License

Shop & Establishment Act • Licence • Yearly • HIGH

Obtain/renew shop license under state Shops & Establishments Act

**PENALTIES:** Operating without valid shop license | Fine: ¹250 to ¹5,000 per day of violation

### 19. Annual Return (MGT-7)

Companies Act • Filing • Yearly • HIGH

File annual return within 60 days of AGM

**PENALTIES:** Late filing of annual return | Fine: ¹100/day, min ¹5,000, max ¹5,00,000

### 20. Financial Statements (AOC-4)

Companies Act • Filing • Yearly • HIGH

File financial statements within 30 days of AGM

**PENALTIES:** Late filing of financial statements | Fine: ¹100/day, min ¹10,000, max ¹10,00,000

### 21. Board Meetings (Min 4/year)

Companies Act • Other • Quarterly • MEDIUM

Hold minimum 4 board meetings per year (gap <120 days)

**PENALTIES:** Non-holding of minimum board meetings | Fine: ¹25,000 on company + ¹5,000 per director per default

### 22. POSH Compliance

Labour Laws • Registration • Yearly • HIGH

Constitute Internal Complaints Committee under Sexual Harassment Act

**PENALTIES:** Failure to constitute ICC or comply with POSH Act | Fine: ¹50,000 (first offence), ¹1,00,000 (subsequent)

### 23. Payment of Bonus

Labour Laws • Payment • Yearly • MEDIUM

Pay bonus between 8.33% to 20% of wages

**PENALTIES:** Non-payment or short payment of bonus | Fine: Up to ¹1,000 or imprisonment up to 6 months | Jail: Up to 6 months (Sec 28)

### 24. Gratuity Compliance

Labour Laws • Other • Event Based • MEDIUM

Pay gratuity after 5 years continuous service (Payment of Gratuity Act)

**PENALTIES:** Non-payment of gratuity | Fine: ¹20,000 to ¹50,000 | Jail: Imprisonment up to 2 years (Sec 9)

### 25. Pollution Board Consent (CTE/CTO)

Environment Act • Licence • Yearly • HIGH

Obtain Consent to Establish and Operate from SPCB

**PENALTIES:** Operating without consent from Pollution Board | Fine: ¹1,00,000 to ¹5,00,000 per day of violation | Jail: Imprisonment up to 5 years (Sec 26)

## SECTION 3 — EDUCATION & EDTECH INDUSTRY COMPLIANCE

### 26. UGC/Regulatory Compliance

Other • Registration • Yearly • HIGH

Comply with UGC/AICTE/other education regulatory body norms

**PENALTIES:** Non-compliance with UGC/AICTE norms | Fine: De-recognition, penalty up to ¹50,00,000

## PENALTY SUMMARY

| # | COMPLIANCE ITEM | PENALTY | FINE |
|---|---|---|---|
| 1 | GST Registration | Failure to register under GST | ¹10,000 or 10% of tax due, whichever is higher |
| 2 | GSTR-1 Filing (Outward Supplies) | Late filing of GSTR-1 | ¹50/day ( ¹25 for NIL return), max ¹10,000 |
| 3 | GSTR-3B Summary Return | Late filing of GSTR-3B | ¹50/day ( ¹25 for NIL return), max ¹10,000 |
| 4 | GST Annual Return (GSTR-9) | Late filing of annual return | ¹100/day, max 0.25% of turnover |
| 5 | E-Way Bill Compliance | Movement of goods without E-Way bill | ¹10,000 or 200% of tax payable |
| 6 | Income Tax Return (ITR-6) | Late filing of ITR | ¹5,000 ( ¹1,000 if income < ¹5L) |
| 7 | Advance Tax Payment | Non-payment or short payment of advance tax | 1% simple interest per month on unpaid amount |
| 8 | TDS on Salary (Sec 192) | Late deposit of TDS | 1% interest per month on amount deducted |
| 9 | TDS on Contractor (Sec 194C) | Non-deduction or late deposit of TDS | 1% interest per month + penalty equal to TDS amount |
| 10 | TDS on Professional Fees (Sec 194J) | Non-deduction or late deposit of TDS | 1% interest per month + penalty equal to TDS amount |
| 11 | TDS Quarterly Return (Form 24Q/26Q) | Late filing of TDS return | ¹200/day, max ¹30,000 |
| 12 | EPF Registration | Failure to register for EPF | Up to ¹5,000 |
| 13 | EPF Monthly Contribution | Late deposit of EPF contribution | Up to ¹5,000 or imprisonment up to 3 years |
| 14 | EPF Annual Return (Form 5A) | Failure to file EPF annual return | Up to ¹5,000 |
| 15 | ESI Registration | Failure to register under ESI | Up to ¹5,000 |
| 16 | ESI Monthly Contribution | Late deposit of ESI contribution | Simple interest at 12% per annum |
| 17 | Professional Tax | Failure to deduct/pay professional tax | ¹1,000 to ¹5,000 + interest 1.25% per month |
| 18 | Shop & Establishment License | Operating without valid shop license | ¹250 to ¹5,000 per day of violation |
| 19 | Annual Return (MGT-7) | Late filing of annual return | ¹100/day, min ¹5,000, max ¹5,00,000 |
| 20 | Financial Statements (AOC-4) | Late filing of financial statements | ¹100/day, min ¹10,000, max ¹10,00,000 |
| 21 | Board Meetings (Min 4/year) | Non-holding of minimum board meetings | ¹25,000 on company + ¹5,000 per director per default |
| 22 | POSH Compliance | Failure to constitute ICC or comply with POSH Act | ¹50,000 (first offence), ¹1,00,000 (subsequent) |
| 23 | Payment of Bonus | Non-payment or short payment of bonus | Up to ¹1,000 or imprisonment up to 6 months |
| 24 | Gratuity Compliance | Non-payment of gratuity | ¹20,000 to ¹50,000 |

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|---|---|---|---|
| 25 | Pollution Board Consent (CTE/CTO) | Operating without consent from Pollution Board | ₹1,00,000 to ₹5,00,000 per day of violation |
| 26 | UGC/Regulatory Compliance | Non-compliance with UGC/AICTE norms | De-recognition, penalty up to ₹50,00,000 |

## DUE DATE CALENDAR GUIDE

| FREQUENCY | | |
|---|---|---|
| **Monthly** | By 15th of every month | GSTR-3B, PF Payment, ESI Payment |
| **Quarterly** | By 15th of month following quarter end | GSTR-1 (QRMP), PF Return |
| **Half-Yearly** | Within 6 months of period end | POSH Annual Report |
| **Yearly** | Within 3 months of FY end (by June 30) | IT Return, Annual Return, Audit |
| **One-Time** | Within 1 year of applicability | GST Registration, PF Registration |
| **Event-Based** | As per event timeline | GST Revocation, Change in Details |